





THREE DECADES IN JAIL
A key conspirator in the Rajiv Gandhi assassination case, Nalini, after her arrest; (L to R) Murugan and Santhan were also on death row before their sentence was commuted

bomb that killed Rajiv on May 21, 1991. He was 19 when he was arrested on June 11 that year.

"This is a good sign...of a mature nation. It is part of the reformative process which should be encouraged," says Supreme Court lawyer K.T.S. Tulsi, pointing out that "the Gandhis themselves had gone and met the convicts and forgiven them." The largeheartedness of the Gandhis, though, does not extend to the families of the others who died at Sriperumbudur that fateful day; they say the court order is unacceptable and are still demanding stringent punishment. D.R. Karthikeyan, head of the Special Investigation Team (SIT) in the case, also dismisses the claims that the convicts were actually innocent. Indeed, Perarivalan and all six others—Murugan, Santhan, Jayakumar, Robert Payas, Jayachandran and Nalini—had known LTTE antecedents. Perarivalan had even made a clandestine trip to Sri Lanka sometime in the late 1980s when the conflict there was at its peak.

The verdict now has the potential to spur other state governments to recommend release of convicts in their jails. In Tamil Nadu, pressure is already building for the release of the six others. Chief minister M.K. Stalin, travelling in the Nilgiris during the weekend, apprised himself of the legal process to expedite this via video conference from Udhagamandalam. "He (Perarivalan) should have been released much earlier by granting remission after 14 years in jail," says former Supreme Court judge K.T. Thomas, adding that the relief should now apply to the other convicts as well. "Why should they be discrimination against?" he asks. Incidentally, Justice Thomas headed the apex court bench which upheld the death sentence of Perarivalan and three others in 1999.

Opinion is mixed, though, on the question of trimming the governor's ambit of powers. In a 2018 order that actually empowered the office, the SC laid down no time-frame for the governor under Article 161 to suspend, commute or remit sentences. "Our apex court's decisions, like Bollywood crime thrillers, survive sometimes on shock value. It is an institution that subscribes to the theory that consistency is of no great value," says senior lawyer L. Ravichander. "The problem, often, is about implications. The court stepped in, faulted a constitutional authority for want of promptitude and did, Article 142 notwithstanding, what the Constitution delegates to another power source. The language employed in the Constitution empowering the governor specifies no deadline. This verdict seems to move in that direction. Effectively, it is hemming in Article 161. Again, promptitude and the Indian judiciary!"

When and how the power, under Article 142, is to be exercised had been judicially reviewed in 2007. Did the apex court, in the exercise of its omnibus power, rush in where it should have treaded slowly? Did it lose sight of the verdict in Union of India versus V. Sriharan (2016) when the court ruled that the government, not the court, will

WHAT IS ART. 142?

Article 142, in media parlance, is often referred to as 'judicial activism'. In cases and situations where the law or statute is unable to provide a solution, Article 142 provides special powers to the Supreme Court of India to do "complete justice". It is understood that such orders are enforceable nationwide, the same as any law made by Parliament or by order of the President of India. Some instances of Article 142 being used...

2016 | Ban on the sale of alcohol within a stipulated distance of 500 metres from the outer edge of the highway (to avoid accidents due to drinking and driving)

2014 | Cancelling allocation of coal blocks granted from 1993 onwards of those who were guilty of wrongdoing

1989 | Providing compensation to the Bhopal gas tragedy victims